

Jammu and Kashmir Judicial Officers (Allowance, Amenities and Advances) Rules, 2015

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Jammu and Kashmir Judicial Officers (Allowance, Amenities and Advances) Rules, 2015

JAMMU & KASHMIR

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Jammu and Kashmir Judicial Officers (Allowance, Amenities and Advances) Rules, 2015

Rule JAMMU-AND-KASHMIR-JUDICIAL-OFFICERS-ALLOWANCE-AMENITIES-AND-ADVANCES-RULES-2015 of 2015

Published on 1 January 2015

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Jammu and Kashmir Judicial Officers (Allowance, Amenities and Advances) Rules, 2015

Published vide Notification No. SRO-334, Srinagar, dated 23rd of September, 2015

SRO-334. - In pursuance of sub-rule (4) of rule 12 of the Jammu and Kashmir Judicial Officers (Allowance, Amenities and Advances) Rules, 2007, the Government in consultation with the Jammu and Kashmir High Court makes the following rules for grant of Leave Travel Concession/Home Travel Concession for Judicial Officers of the State :-

1.

Short title and commencement.

(1)

These rules may be called the Jammu and Kashmir Judicial Officers (Allowance, Amenities and Advances) Rules, 2015.

(2)

They shall be deemed to have come into force from 01-01-2014.

2.

Entitlement.

(a)

The Judicial Officer may claim Leave Travel Concession on completion of two years of continuous service and after successful completion of the period of probation ;

(b)

Leave Travel Concession to any part of India can be availed by a Judicial Officer once in a block of four years ;

(c)

The block of four years, for these rules shall be deemed to have started from 2014-2017 and so on ;

(d)

Home Travel Concession can be availed of for any destination in the State of Jammu and Kashmir only if the Judicial Officer has already put in not less than two years of continuous service on the date he/she applies for such concession ;

(e)

A Judicial Officer shall be entitled to Home Travel Concession once in a block of two years, which these rules shall be deemed to have started from 2014-2015 ;

(f)

The Judicial Officer may claim Leave Travel Concession or Home Travel Concession for the journey by himself/herself, spouse, minor children and unmarried daughter(s) ;

(g)

The family shall be allowed to avail of the facility in one go and not in batches. Where the spouse of the Judicial Officer is serving with the State Government, or in judicial service, the facility shall be availed only once during a block of 4 years ;

(h)

No request by a Judicial Officer for cash payment in lieu of Leave Travel Concession/Home Travel Concession shall either be entertained or allowed.

3.

Mode of Travel.

- The entitlement for journeys and mode of travel shall be as applicable to journeys on tour in terms of TA Rules contained in J&K CSRs Vol-I.

4.

Sanctioning Authority.

(a)

The High Court of Jammu and Kashmir shall be the Sanctioning Authority for purposes of Leave Travel Concession/Home Travel Concession and shall allow the concession to the Judicial Officers on first applied first sanctioned basis but subject to availability of budgetary provision for the purpose ;

(b)

The facility of concession shall strictly follow the reimbursement mode. The reimbursement shall be restricted to actual fare incurred for permissible mode/class of travel by the shortest direct route and to be made only on production of cash vouchers in original.

5.

Any matter not covered under these rules or under the Jammu and Kashmir Judicial Officers (Allowance, Amenities and Advances) Rules, 2007 shall be dealt with, in accordance with the provisions under Central Civil Services (LTC) Rules, 1988. However, entitlement for journey shall be as per rules in the respective States as recommended by the Shetty Commission i. e. in Jammu and Kashmir, they shall be governed by the travel rules of the State.

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